



SPONSOR: Sen. Sokola
Sens. Townsend, Lockman, Brown, Cruce, Hansen,
Hoffner, Huxtable, Mantzavinos, Paradee, Pinkney,
Poore, Seigfried, Sturgeon, Walsh

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE RESOLUTION NO. 17

EXPRESSING OUTRAGE OVER DEATHS INVOLVING AGENTS OF THE UNITED STATES DEPARTMENT OF HOMELAND SECURITY; CALLING FOR TRANSPARENCY AND ACCOUNTABILITY TO PRESERVE FAITH AND TRUST IN LAW ENFORCEMENT; AND AFFIRMING THE FIRST AMENDMENT RIGHTS OF THE AMERICAN PEOPLE.

1 WHEREAS, the right to peaceful protest of the government is a fundamental right enshrined in the First
2 Amendment to the United States Constitution; and

3 WHEREAS, Constitutional amendments are rendered meaningless if federal agents are permitted to deploy deadly
4 force against the public with no consequences; and

5 WHEREAS, in recent weeks and months, across the country multiple deaths have occurred from actions of agents
6 of the United States Immigration and Customs Enforcement ("ICE") and the United States Border Patrol ("Border Patrol"),
7 which are agencies within the United States Department of Homeland Security; and

8 WHEREAS, state-level officials have faced federal barriers to investigating conduct and deaths that occur in their
9 jurisdiction; and

10 WHEREAS, the continued operations of ICE and the Border Patrol in communities throughout the United States
11 without clear transparency and accountability for their actions has increased tensions and undermined public safety and
12 trust; and

13 WHEREAS, the public's trust in law enforcement is critical to public safety and the safety of law enforcement
14 officers themselves, and abuses of power damage that trust.

15 NOW, THEREFORE:

16 BE IT RESOLVED that the Senate of the 153rd General Assembly of the State of Delaware hereby condemns and
17 expresses its outrage over tragic killings at the hands of federal agents.

18 BE IT FURTHER RESOLVED that the Senate calls for the immediate cessation of excessive conduct by federal
19 law enforcement, as that serves to undermine the public's faith and trust in government, and in all law enforcement,
20 including the use of deadly force in response to non-violent conduct.

21 BE IT FURTHER RESOLVED that the Senate calls for accountability when federal agents use deadly force,
22 including through independent, state-level investigations free from automatic federal immunity.

23 BE IT FURTHER RESOLVED that the Senate urges all agents of the United States Department of Homeland
24 Security, including ICE and the Border Patrol, and all federal officials, to respect the United States Constitution and the
25 First Amendment, and to view peaceful protests not as a threat, but as a defining strength of American democracy.

SYNOPSIS

This resolution considers the increasingly egregious tactics, including lethal use of force, being used by agents of the Department of Homeland Security.

Author: Senator Sokola